

Unsafe Building November 13, 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=Zb6ed1OkleQ
Publication Date	2025-11-14T08:37:58Z
Target Category	muncie_city

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Municipal Meeting Summary Report

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The presiding officer called the municipal board/hearing authority meeting to order, managing a docket consisting of various property rehab and demolition orders, civil penalties, and compliance extensions.
- **Attendance:** Specific individual roll-call attendance of board members is not explicitly detailed in the opening transcript, but multiple board members and administrative staff (including staff members Courtney, Becky, and Hannah) actively participated throughout the proceedings.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Not mentioned in the provided text.
- **Approval of Minutes:** Not mentioned in the provided text.

4. Substantive Business & Board Action

- **00:00:34 Property / Agenda Item:** Case 1: Unidentified Property (Tabled matter regarding property security and yard cleanup)

- **Sponsor / Presenter:** Board Members / Property representative working with the "Intend Indiana project".
 - **Deliberation Summary:** Discussion regarding keeping the property secure and mowed, and cleaning up yard debris.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to affirm the order and table the property until the November 2026 hearing.
- **00:01:10 Item Identifier & Title:** New Rehab Order: 43013 West Oakland Avenue
 - **Sponsor / Presenter:** Max (New property owner, mailing address: 3313 N. Locust Street, Muncie, IN).
 - **Deliberation Summary:** The owner stated he purchased the house on October 29th for personal use (not renting) and is moving quickly to fix it. He has obtained electrical permits, installed a meter box, secured water/sanitary service, and contracted a roof repair for the following day.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to affirm the rehab order and continue for six months (hearing date: May 14th, 2026). If inspected and released by the building commissioner's office by then, no further appearance is required.
- **00:04:57 Item Identifier & Title:** Continued Cases (Middletown Property Group): Garage Tagged Property
 - **Sponsor / Presenter:** Representative of Middletown Property Group (mailing address: 523 West 8th / 1709 North Walnut Street).
 - **Deliberation Summary:** The garage was previously tagged; required repairs had not been completed to the board's liking, and no progress inspection had been conducted prior to the hearing.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to impose a \$150 fine for failure to obtain a progress inspection, continue the property for 60 days, and require a progress inspection prior to the next hearing.
- **00:07:42 Item Identifier & Title:** 2017 North Glenwood Avenue
 - **Sponsor / Presenter:** Middletown Property Group representative.
 - **Deliberation Summary:** Discussion regarding interior renovations. It was noted that no inspection had been ordered or conducted since initial tagging, no permits (such as required electrical permits) had been issued, and the property is vacant.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to impose a \$150 fine for failure to obtain an inspection, continue the case to December 11th (30 days), and order an inspection and permits prior to the next hearing.
- **00:10:44 Item Identifier & Title:** 1127 South Jefferson Street
 - **Sponsor / Presenter:** Middletown Property Group representative.

- **Deliberation Summary:** The owners purchased the property a couple of months prior, replaced the roof, and completed foundation repairs. The property is currently being cleared out internally before HVAC/electrical permits are pulled.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue the case for 60 days with a required inspection prior to the hearing.
- **00:12:46 Item Identifier & Title:** 720 West Centennial Avenue
 - **Sponsor / Presenter:** Dakota Crabtree, Middletown Property Group (mailing address: 1709 North Walnut Street, Muncie).
 - **Deliberation Summary:** An inspection was conducted on November 6th covering the tagged apartment and basement; the inspector stated everything was in good condition and okay to be released. Staff recommended reducing the original civil penalty to a \$500 fine (10% of the original amount).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to release the property and reduce the civil penalty to \$500.
- **00:14:18 Item Identifier & Title:** 2204 South Vine Street
 - **Sponsor / Presenter:** Dakota Crabtree, Middletown Property Group.
 - **Deliberation Summary:** Discussed garage roof and ceiling repairs (removing plywood, treating organic growth, and replacing ceilings/walls). Bids were released to the property owner today, but no inspection had been conducted.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to issue a \$150 fine for failure to obtain an inspection and continue the case to January 8th, with a required inspection prior to the hearing.
- **00:16:46 Item Identifier & Title:** Continued Demo Orders: 1824 East Indiana Avenue
 - **Sponsor / Presenter:** Bundle Reed (mailing address: 618 South Shipley Street, Muncie).
 - **Deliberation Summary:** An inspection on October 21st showed the property passed, was cleaned, and is occupied. The speaker requested leniency on fines, noting the homeowner is disabled, lives on a reduced fixed income (\$640/month due to an overpayment deduction), and that family/volunteers fixed the window, cut down a tree, and mowed the yard. Staff recommended releasing the \$2,500 civil penalty in full while keeping a \$150 fine, but the board opted to waive all penalties.
 - **Item-Specific Public Input:** Bundle Reed testified regarding the homeowner's financial hardship and disability status.
 - **Action & Vote Disposition:** Approved by Voice Vote to release the property and rescind all civil penalties and fines.
- **00:20:42 Item Identifier & Title:** 913 West Kilgore Avenue
 - **Sponsor / Presenter:** Nate Howard, Muncie Land Bank (mailing address: 515 East Main Street).

- **Deliberation Summary:** The Land Bank cleaned up the property and sold it locally for \$5,000 to a student buyer (Sadi J. Hannah) under deed restrictions requiring a \$50,000<U+2013>\$60,000 rehab over 5<U+2013>6 months. The Land Bank sought to close its case, but board members requested the actual property owner appear.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue the case for 30 days to require the new property owner to appear in December.
- **00:23:08 Item Identifier & Title:** 810 East Kirby Avenue
 - **Sponsor / Presenter:** Damon Johnson (mailing address: 14416 Bans Drive, Noblesville, IN).
 - **Deliberation Summary:** The owner paid the fine that day, replaced all windows, and noted that only kitchen wiring and final framing remain. Permits are active. Staff recommended modifying the demo order to a rehab order under administrative enforcement.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to modify the demolition order to a rehab order, affirm the rehab order, and place the property on administrative enforcement.
- **00:24:55 Item Identifier & Title:** 1617 South Madison Street
 - **Sponsor / Presenter:** Jerry Miller (Property Owner).
 - **Deliberation Summary:** The owner stated he paid up taxes on the property this month (\$1,000<U+2013>\$2,500) but expressed fear of visiting the site due to previous unauthorized occupants/squatters and police involvement. He wishes to sell the property or transition the demo order to a rehab order so a buyer can take it. Board noted that properties can be sold with demo orders in place.
 - **Item-Specific Public Input:** Jerry Miller spoke regarding safety concerns and tax payments.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue the case for 60 days (January hearing) to allow the owner to secure the property and find a buyer/realtor.
- **00:32:09 Item Identifier & Title:** 3705 South Madison Street (Southway Plaza)
 - **Sponsor / Presenter:** Theo Sharp, Sharp Property Management (mailing address: 417 South Elliot Street, Muncie).
 - **Deliberation Summary:** The property was tagged for trash and placed under a demo order. The manager reported trash has been cleaned up, a retainer was paid by the owner, and plans include future redevelopment (including a pickleball convention center). Board inspectors noted broken windows, tires, and roof damage on the former supermarket section.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Approved by Voice Vote to continue for 60 days, order a project plan and building inspection, and require securing broken window areas and the back door of the former grocery store.
- **00:39:34 Item Identifier & Title:** Continued Rehab Orders: 1001 East 29th Street
 - **Sponsor / Presenter:** Heather McKibben (mailing address: 5723 North State Road 67).
 - **Deliberation Summary:** The owner presented photos and progress reports regarding scrapping cars from the back lot. While multiple cars have been removed, board members expressed difficulty tracking exact inventory metrics. An inspection prior to the hearing had not occurred due to an overseas trip (Germany) for an anniversary.
 - **Item-Specific Public Input:** Heather McKibben presented photographic evidence of lot clearing and car removals.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue for 30 days, issue a \$150 fine for failure to obtain an inspection, require an inspection prior to the next hearing, and mandate an inventory report detailing towed vs. remaining cars.
- **00:49:33 Item Identifier & Title:** 928 North Gavin Street
 - **Sponsor / Presenter:** Julia Munos (mailing address: 2028 East Purdue Road, Muncie), representing the homeowner.
 - **Deliberation Summary:** The representative reported that the house is 90% complete, with new siding, windows, doors, and floor joists installed. Staff confirmed substantial progress and recommended moving the property to administrative enforcement.
 - **Item-Specific Public Input:** Julia Munos testified to the extensive renovations completed.
 - **Action & Vote Disposition:** Approved by Voice Vote to move the property to administrative enforcement.
- **00:52:24 Item Identifier & Title:** 725 North Jefferson Street
 - **Sponsor / Presenter:** Cleave Gregory (mailing address: 725 North Jefferson Street).
 - **Deliberation Summary:** The owner stated half of the roof is covered/tarped and non-leaking over the kitchen, but requested a time extension. He admitted he failed to obtain an inspection prior to the hearing due to overlooking the notice.
 - **Item-Specific Public Input:** Cleave Gregory spoke regarding roof repair status.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue for 60 days, issue a \$150 fine for failure to obtain an inspection, and require an inspection prior to the next hearing.
- **00:55:06 Item Identifier & Title:** 1723 South Madison Street
 - **Sponsor / Presenter:** Lisa Brown (mailing address: 616 East 4th Street, Hartford City, IN).

- **Deliberation Summary:** The representative reported slow progress due to funding constraints across multiple trust-owned properties, but noted vacancies are being turned over to generate funds for siding and interior work.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue for 90 days (February 12th) with a required inspection prior to the next hearing.
- **00:58:15 Item Identifier & Title:** 105 West Main Street
 - **Sponsor / Presenter:** Es. Kosari (Property Owner, mailing address: 716 West Kilgore, Muncie) and Daniel / David Fisher (Tenants).
 - **Deliberation Summary:** The owner stated lease contracts expired at the end of October, but tenants refuse to move out, prompting a pending court eviction hearing on December 4th. The owner argued he cannot perform foundation repairs while occupants reside in the building. Conversely, tenants David and Daniel Fisher alleged severe habitability issues, retaliation, and lack of repairs, noting investigations by civil rights and disability commissions.
 - **Item-Specific Public Input:**
 - *Es. Kosari* testified about tenant non-cooperation and ongoing eviction proceedings.
 - *David/Daniel Fisher* testified regarding maintenance grievances, weatherization problems, disability accommodations, and court actions.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue the case for 30 days to December 11th pending the outcome of the eviction proceedings.
- **01:08:01 Item Identifier & Title:** 1200 Adjacent South Mulberry Street & 1200 South Mulberry Street (Apartment 6)
 - **Sponsor / Presenter:** Kevin Henson (mailing address: 1200 South Mulberry, Number 5).
 - **Deliberation Summary:** Unit 12 is completed; the last four units will be boarded up for storage and remodeled next summer. Staff recommended releasing rehab and trash orders and reducing civil penalties.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to release rehab and trash orders on both parcels, reduce the civil penalty for parcel 45 from \$5,000 to \$500 (while maintaining a separate \$1,000 fine), and execute parallel penalty reductions for parcel 46.
- **01:11:09 Item Identifier & Title:** 3206 South Vine Street
 - **Sponsor / Presenter:** Shannon Falenstein (mailing address: 2800 West Memorial Drive, Lot 122, Muncie).
 - **Deliberation Summary:** The owner stated the roof is fully tarped and dried in. She successfully applied for and was approved for a grant of up to \$15,000 through the Federal Home Loan Bank via a charity, and is currently reviewing contractor bids.

- **Item-Specific Public Input:** Shannon Falenstein presented grant documentation and contractor bid details.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue the case for approximately 120 days to March 12th.
- **01:15:37 Item Identifier & Title:** Continued Demo Orders: 585 West Wilson Avenue & 590 West Wilson Avenue (Cases 28 & 29)
 - **Sponsor / Presenter:** Carl Benton (mailing address: 809 East Main Street, Muncie).
 - **Deliberation Summary:** The owner stated flip-house financial overruns in Wabash forced him to rent that property out rather than sell it, tightening his cash flow. He demolished a hazardous building on the Wilson site and requested a dumpster to finish backyard cleanup while he seeks hard money financing. Fines for these properties had been paid.
 - **Item-Specific Public Input:** Carl Benton spoke regarding financial constraints and cleanup efforts.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue both properties to the January 8th meeting.
- **01:18:53 Item Identifier & Title:** 2220 South Hoyt Avenue (Case 20)
 - **Sponsor / Presenter:** Fernando Morales (mailing address: 1396 Britain Ridge).
 - **Deliberation Summary:** The owner has a building permit and obtained plumbing/HVAC estimates from Peterman, but found them expensive. The board advised him to obtain a list of licensed contractors from the third-floor office. Work will focus on electrical, HVAC, and drywall.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote to modify the demolition order to a rehab order, affirm the rehab order, continue for 90 days, and require an inspection prior to the next hearing.
- **01:21:39 Item Identifier & Title:** 1132 North Warwick Road
 - **Sponsor / Presenter:** Thomas Floyd (mailing address: 1132 Warwick Road).
 - **Deliberation Summary:** The owner is gathering funds for roof repairs (noting an expensive rubber roof type). City staff (MSD) scheduled a site visit for the following Wednesday to assist with clearing heavy exterior debris and material storage.
 - **Item-Specific Public Input:** Thomas Floyd discussed funding plans and debris removal coordination.
 - **Action & Vote Disposition:** Approved by Voice Vote to continue for 60 days (January 8th) requiring two roof estimates prior to that date. *(Note: The owner also inquired about street lighting/dawn-to-dark lighting policies, and was directed to Public Works).*
- **01:26:00 Item Identifier & Title:** En Masse Adoption of Uncontested Docket Items
 - **Sponsor / Presenter:** Presiding Board Member / Staff.
 - **Deliberation Summary:** The board addressed properties where no owner or representative appeared after due notice.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Passed Unanimously by Voice Vote to adopt the building commissioner's office reports and staff-recommended orders for properties docketed as numbers: **2, 3, 5, 6, 11 through 19, 27, 30, 31, 35, 36, 38, 40, 43, and 44.**

5. Open Public Comment / Citizen Forum

(General floor comments were integrated into specific docket hearings, notably during the proceedings for 105 West Main Street 00:58:15, where tenants addressed the board regarding landlord disputes, habitability, and legal protections.)

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Reference was made to upcoming January meeting dates (January 6th / January 8th) and February hearing dates (February 12th) for continued cases. Staff directed citizens to the third-floor office for contractor lists, permit processing, and tenant unsafe housing assistance.
- **Adjournment:** The meeting concluded following the en masse vote on uncontested docket items 01:26:00.

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